• Parliamentary System

34. A Parliamentary System of Government is one in which–

(a) All political parties in the Parliament are represented in the Government

(b) The Government is responsible to the Parliament and can be removed by it

(c) The Government is elected by the people and can be removed by them

(d) The Government is chosen by the Parliament but cannot be removed by it before completion of a fixed term

Ans. (b) : Democratic governance is the system in which the executive derives its democratic legitimacy through the legislature and is responsible to the legislature. Parliamentary government is a system in which the executive (cabinet) is responsible to the legislature (parliament) for its functions; hence it is also called responsible government. In this, the executive can remain in his post as long as he has the majority (confidence) of the legislature (Parliament). Article 74 (council of ministers) and 75 (PM) are related to the parliament system in the center and Article 163 (State council of ministers) and 164 (CM) are about the parliamentary system in the state.

35. Consider the following statements:

1. The President of India can summon a session of the Parliament at such place as he/she thinks fit.
2. The Constitution of India provides for three sessions of the Parliament in a year, but it is not mandatory to conduct all three sessions
3. There is no minimum number of days that the Parliament is required to meet in a year

Which of the statements given above is/are correct?

(a) 1 only (b) 2 only

(c) 1 and 3 only (d) 2 and 3 only

Ans. (c) : Article 85(1) of the Constitution empowers the President to summon each House of parliament to meet at such time and place as he thinks fit, but six months shall not intervene between its last sitting in one session and the date appointed for its first sitting in the next session. In other words, the Parliament should meet at least twice a year. Hence statement 1 is correct and statement 2 is not correct.

There is no minimum number of days that parliament is required to meet in a year. Hence statement 3 is correct.

36. Rajya Sabha has equal powers with Lok Sabha in–

(a) The matter of creating new All India Services

(b) Amending the Constitution

(c) The removal of the government

(d) Making cut motions

Ans. (b) : Rajya Sabha has equal powers with Loksabha in the amendment of the Constitution bill. Unlike the money bill, the constitutional amendment bill has to be approved by both the houses of parliament with a special majority. There is no provision of a Joint Session in case of disagreement. So, Lok Sabha cannot override the decision of the Rajya Sabha. However, in the matters of formation and removal of the government, the Rajya Sabha has unequal status with respect to Lok Sabha. Similarly, Rajya Sabha has fewer power in matters of finance like making cut motions, passing money bills etc., vis-a-vis Lok Sabha. The Rajya Sabha has been given some special powers which it enjoys exclusively. This includes the power to authorize the parliament to create new All India Services common to both the center and states (Article 312) by passing a resolution. Hence the correct answer is (b).

37. Along with the Budget, the Finance Minister also places other documents before the parliament which include 'The Macro Economic Framework statement'. The aforesaid document is presented because this is mandated by

(a) Long standing parliamentary convention

(b) Article 112 and Article 110(1) of the Constitution of India

(c) Article 113 of the Constitution of India

(d) Provisions of the Fiscal Responsibility and Budget Management Act, 2003

Ans. (d) : Fiscal Responsibility and Budget Management (FRBM) became an act in 2003. The objective of the Act is to ensure intergenerational equity in fiscal management, long-run macroeconomic stability, better co-ordination between fiscal and monetary policy and transparency in the fiscal operation of the Government. FRBM Act provides a legal, institutional framework for fiscal consolidation. The Act also requires the government to lay before the parliament three policy statements each financial year namely.

(i) Medium term fiscal policy statement.

(ii) Fiscal policy strategy statement and

(iii) Macroeconomic framework policy statement.

Hence (d) is the correct answer.

MISCELLANEOUS

38. One common agreement between Gandhism and Marxism is–

(a) the final goal of a stateless society

(b) class struggle

(c) abolition of private property

(d) economic determinism

Ans. (a) : Mahatma Gandhi and Marx Ideology were two opposite streams of thought, where Gandhiji considered democracy favourable for India and the world and was a supporter of truth and non-violence. Marxism connects democracy with capitalism; Marx ideology sowed violent seeds in many countries. But both have conceptualized a stateless society as an end goal. Therefore, Gandhism and Marxism are considered anarchists.

39. In the context of India, which one of the following is the characteristic appropriate for bureaucracy?

(a) An agency for widening the scope of parliamentary Democracy

(b) An agency for strengthening the structure of federalism

(c) An agency for facilitating political stability and economic growth

(d) An agency for the implementation of public policy

Ans. (d) : The bureaucracy is responsible for carrying out and implementing the policies of the government. They are responsible for the day to day administration and are also called the permanent executives. While the heads of government and their ministers, saddled with government policy's overall responsibility, are together known as the political executives having a shorter term of office (In India it is generally for 5 years).

40. Consider the following statements:

1. According to the Constitution of India, a person who is eligible to vote can be made a minister in a State for six months even if he/she is not a member of the Legislature of that State.
2. According to the Representation of People Act, 1951, a person convicted of a criminal offence and sentenced to imprisonment for five years is permanently disqualified from contesting an election even after his release from prison.

Which of the statements given above is/are correct?

(a) 1 only (b) 2 only

(c) Both 1 and 2 (d) Neither 1 nor 2

Ans. (d) : The Constitution lays down only the following four qualifications for a person to be chosen a member of the state legislature.

1. He must be a citizen of India.
2. He must make and subscribe to an oath or affirmation before the person authorised by the Election Commission for this purpose. In his oath or affirmation, he swears,

(a) To be true faith and allegiance to the Constitution of India.

(b) To uphold the sovereignty and integrity of India.

3. He must not be less than 30 years of age in the case of the legislative council and not less than 25 years of age in the case of the legislative assembly. Whereas voting right is only 18 years.
4. He must possess other qualifications prescribed by parliament.

Therefore, statement 1 is not correct.

According to the Representation of People Act, 1951 a person convicted of any offence and sentenced to imprisonment for not less than 2 years shall be disqualified from the date of such conviction and shall continue to be disqualified for a further period of six years since his release. Hence, statement 2 is not correct.

41. Consider the following statements:

1. Aadhar metadata cannot be stored for more than three months
2. State cannot enter into any contract with private corporations for sharing of Aadhar data
3. Aadhar is mandatory for obtaining insurance products
4. Aadhar is mandatory for getting benefits funded out of the Consolidated Fund of India.

Which of the statements given above is/are correct?

(a) 1 and 4 only (b) 2 and 4 only

(c) 3 only (d) 1, 2 and 3 only

Ans. (b) : Aadhaar metadata cannot be stored beyond 6 months. According to the Insurance Regulatory and Development Authority (IRDA), Aadhaar is not mandatory for purchasing insurance products. The Supreme Court has clearly said, it is necessary to file income tax and link PAN to Aadhar. According to Section 57 of the Aadhar Act, the state and the corporate or any person have no right to ask for an Aadhar card for identification.

42. With reference to the funds under Members of Parliament Local Area Development Scheme (MPLADS), which of the following statements are correct?